

**GOVERNMENT OF WEST BENGAL  
SCHOOL EDUCATION DEPARTMENT  
(ELEMENTARY EDUCATION BRANCH)  
BIKASH BHAVAN, 5<sup>TH</sup> FLOOR, SALT LAKE, KOLKATA-700091**

No. 402-SED-13037/191/2025 LAW SEC

Date: 11.09.2026

From: Special Secretary to the Government of West Bengal

To : i) The Chairman

West Bengal Central School Service Commission,  
Acharya Sadan, EE-11 & 11/1,  
Sector-II, Bidhannagar, Kolkata-700091.

ii) The President-in-Charge

West Bengal Board of Primary Education,  
Acharya Prafulla Chandra Bhavan,  
DK-7/1, Sector-II, Bidhannagar, Kolkata-700091.

**Subject: Arrangements for conducting the Teacher Eligibility Test for in-service teachers, in compliance with the judgment of the Hon'ble Supreme Court dated 01.09.2025 in Civil Appeal No. 1385 of 2025 (State of U.P.-Vs- Anjuman Ishaat-E-Taleem Trust & Ors.), as modified by the order dated 29.05.2026 in Review Petition (Civil) Diary No. 53434 of 2025 in Civil Appeal No. 1385 of 2025.**

Sir/Madam,

I am directed to refer to the judgment dated 01.09.2025 of the Hon'ble Supreme Court in Civil Appeal No. 1385 of 2025, State of U.P. -Vs- Anjuman Ishaat-E-Taleem Trust & Ors., whereby it has been held that in-service teachers, recruited prior to the enactment of the Right of Children to Free and Compulsory Education Act, 2009, and having more than five years of service remaining, are under an obligation to qualify the Teacher Eligibility Test in order to continue in service, failing which they shall not be entitled to continue in service.

I am further directed to state that the aforesaid solemn direction was reviewed by the Hon'ble Supreme Court and modified vide order dated 29.05.2026 in Review Petition (Civil) Diary No. 53434 of 2025 in Civil Appeal No. 1385 of 2025. The Hon'ble Court has extended the period earlier granted for acquiring the Teacher Eligibility Test qualification from two years to three years, and the qualification is now required to be obtained on or before 31st August 2028.

It has also been directed by the Hon'ble Supreme Court that the respective States and the competent authorities shall conduct the Teacher Eligibility Test periodically, and preferably twice a year, with an interval of approximately six months between successive examinations, so as to afford eligible in-service teachers a reasonable opportunity to comply with the statutory requirement. It has further been made clear that no further prayer for extension of time shall be entertained.

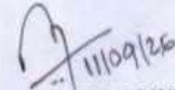
In view of the above, you are requested to take necessary steps, within your respective jurisdictions, for making arrangements for conducting the Teacher Eligibility Test for in-service teachers at the earliest, and thereafter periodically, at intervals of approximately six months, so that all eligible in-service teachers are afforded adequate opportunity to qualify the Teacher Eligibility Test within the extended timeline of 31st August 2028, as directed by the Hon'ble Supreme Court.

A report on the schedule and arrangements made in this regard may kindly be furnished to this Department at an early date, for compliance to be reported to the Hon'ble Supreme Court, if and when called for.

Copies of the judgment dated 01.09.2025 and the order dated 29.05.2026 are enclosed for reference and necessary action.

Encls: As stated.

Yours faithfully,

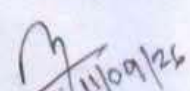
  
(CHANDRANATH ROYCHOWDHURY)  
Special Secretary to the  
Government of West Bengal

No. 402/1(4)-SED-13037/191/2025 LAW SEC

Date: 11.09.2026

Copy forwarded for information and necessary action to:

1. The Commissioner of School Education, West Bengal.
2. The Sr. P.S. to the Additional Chief Secretary, School Education Department.
3. The P.S. to Hon'ble MIC, School Education Department.
4. Office copy

  
Special Secretary to the  
Government of West Bengal